

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: July 17, 2026

The court will endeavor to post tentative rulings on the Court's website by 3 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Dorantes vs. Alexander</i>	Defendant Mondragon's Demurrer to each cause of action of the Second Amended Complaint on the grounds of failure to state a cause of action [CCP §430.10d(e)] and uncertainty is OVERRULED. Defendant Mondragon's demurrers are based upon the argument that he was not an owner of the property and, therefore, cannot be liable under the causes of action asserted. This argument ignores the allegation of the Second Amended Complaint that plaintiffs paid their rent to Mandragon and he told them that he was an owner of the property. [SAC, ¶6] It is not the function of a demurrer to challenge the truthfulness of the complaint; for purposes of ruling on a demurrer, all facts pleaded in the petition are assumed to be true however improbable they may be. [<i>Aubrey v. Tri-City Hospital District</i> (2002) 2 Cal.4th 962, 966-967] To this end, the Court cannot consider facts outside those alleged in the Complaint, like those alleged in Mondragon's Statement of Relevant Facts in his Memorandum of Points & Authorities. Mondragon's relationship to the property needs to be ascertained before liability under the causes of action alleged can be ascertained. This will require the evaluation of evidence. The Court cannot do this on a demurrer. Mondragon's Demurrer to the Second Amended Complaint is OVERRULED. Defendant is ordered to answer by August 3, 2026. Mondragon is to give notice.

51	<i>Gulley vs. James Rivers Insurance Company</i>	Plaintiff Calvin Gully’s Motion for Order Compelling Defendant James River Insurance Company to Serve Further Verified Responses to Requests for Production of Documents, Set Two, and to Produce Documents, is granted in part and denied in part. Plaintiff moves, under CCP section 2031.310, for an order compelling Defendant to provide further verified responses to his second set of requests for production, nos. 58 through 65. When responding to an inspection demand, a party is required to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210, subd. (a).) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. (Code Civ. Proc., § 2031.310, subd. (b).) Here, the requests at issue all arise from Defendant’s use of a private investigator to gather information regarding Plaintiff. Specifically, Plaintiff demands production of: • No. 58: Any and all video recordings, motion pictures, or digital video files depicting the Plaintiff, including the original, raw, unedited footage in its entirety, as well as any edited or
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		“highlight” versions intended for use at trial. • No. 59: Any and all still photographs, digital images, or negatives taken of the Plaintiff by any investigator, agent, or employee of the Responding Party. • No. 60: Any and all written reports, daily activity logs, field notes, or summaries prepared by any person or entity who conducted surveillance of the Plaintiff. • No. 61: The curriculum vitae (CV), resume, or statement of qualifications for each individual or agency who conducted the surveillance or captured the recordings requested in Request No. 58. • No. 62: Any and all contracts, “scope of work” agreements, or retention letters between Responding Party (or their counsel) and the private investigation firm or individuals hired to perform surveillance. • No. 63: Any and all invoices, billing statements, or payment records related to the surveillance of the Plaintiff (monetary amounts may be redacted if claimed as work product, but dates and durations of surveillance must remain visible). • No. 64: All written or electronic communications including emails, text messages, and letters) containing instructions, objectives, or directions provided to the investigator regarding the surveillance of the Plaintiff.
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| | <ul style="list-style-type: none">• No. 65: The “native” files for all digital media produced, specifically including all METADATA which identifies the date, time, GPS location, and camera settings for each recording or photograph. |
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In response to each of these requests (with the exception of no. 62), Defendant responded with the following:

- Defendant incorporates its preliminary statement, general objections, and objections to the instructions and definitions outlined above. Discovery is still ongoing and Defendant reserves its right to further supplement its response at a later date.
- Defendant objects to this Request on the grounds that it is vague and ambiguous. Defendant objects to this Request to the extent it seeks documents and information protected by attorney-client privilege and/or work product protection. Defendant objects to this Request to the extent it encompasses documents that contain confidential or proprietary information and/or trade secrets.
- Subject to and without waiving the foregoing objections, and after diligent search and reasonable inquiry, Defendant refers Plaintiff to the non-privileged, non-confidential, responsive documents from Plaintiff’s claim file already produced in this action.

	In response to no. 62, Defendant stated responded with the same response set forth above, <i>except</i> paragraph 3 was not included. The attorney-work product doctrine is codified in CCP section 2018.030. It provides: a) A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances. b) The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice. (Code Civ. Proc., § 2018.030.) It has long been held that the attorney work product protection applies to investigative material, which was taken as part of trial preparation, whether they are gathered by counsel or by counsel's agent at the direction of counsel. (See <i>Suezaki v. Superior Court of Santa Clara County</i> (1962) 58 Cal.2d 166, 177 [filming of plaintiff by defendant's attorney is the attorneys' work product, but not protected by attorney client privilege]; <i>Southern California Edison Co. v. Superior Court</i> (2024) 102 Cal.App.5th 573, 587 ["It is well established that the work product doctrine " "includes ... the work of those employed by [an attorney] or for him by his client, in investigating both the favorable and unfavorable aspects of the case"].)
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The materials receive “absolute protection” if they “reveal the attorney’s thought process,” which should be determined on a “case by case” basis. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 495–496.) On the other hand, if the material is merely “nonderivative” (i.e. “evidentiary” in nature despite the work invested by counsel in obtaining or locating it), and does not reflect the attorney’s mental impressions, conclusions, etc., then it is generally discoverable as “mere evidence.” (Cal. Prac. Guide Civ. Pro. Before Trial ¶ 8:243.) If the material is somewhere “in between,” such as “photos or films *reflecting counsel's strategies and tactics* in preparation for trial,” then it should be treated as “qualified work product,” which should only be produced if the demanding party shows “a special need for discovery and inability to obtain similar information, etc.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:243.2, emphasis in original.)

Here, the Court finds the documents requested by nos. 58, 59, 61, and 65, should be produced. The materials targeted by the requests are largely evidentiary in nature, and appear to consist of mere surveillance information, which would not reflect counsel’s mental impressions or conclusions. Further, no. 61 is merely a request for the investigator’s CV, which is not subject to work-product protection or attorney-client privilege.

However, the Court finds the motion should be denied with respect to nos. 60, 62, 63, and 64. Plaintiff has not shown “good cause” for any of these requests. It is unclear how any of these materials, particularly the invoices, would be directly relevant to Plaintiff’s breach of implied

		covenant claim. Further, materials like instructions, scope of work, and reports from the agent, are likely to include the attorney's impressions, conclusions, opinions, or theories, as they were communicated to the agent. Defendant is ordered to serve further responses and production for nos. 58, 59, 61, and 65, within 15 days of the notice of ruling. In connection with this motion, the Court declines to award monetary sanctions, because the results were "split," with each side prevailing on half of the requests at issue. Plaintiff shall give notice of the ruling.
52	<i>Houck v. Cole</i>	The Court denies Defendant/Cross-Complainant Jason Cole's Motion to compel compliance with his subpoena for Plaintiff/Cross-Defendant Stephen Houck's psychiatric records from Plaintiff's mental health therapist, Irvine Family Counseling. If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. (CCP § 2025.480(b); <i>see Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127.) "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail at an

address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)

Here, the Proof of Service indicates that the moving papers were "hand delivered" to Irvine Family Counseling. It is not clear if this is the equivalent of personal service based on the facts contained in the Proof of Service.

Moving to the merits of the motion, the two legal mainstays for the protection of plaintiff's medical information are the Constitutional right of privacy (Cal Const. Art. I §1) and the psychotherapist-patient privilege (Evid. Code, § 1014). California recognizes a Constitutional right of privacy protecting discovery of a person's medical information. The courts have emphasized that a patient's medical conditions constitute "a quintessential zone of human privacy." (*Pettus v. Cole* (1996) 49 Cal.App.4th 402, 441.) Privacy protection extends to protection of information about one's medical conditions and medical history, as well as to any medical records.

When a patient makes a claim for personal injuries, the right of privacy regarding "an issue concerning the condition of the patient" is waived "if such issue has been tendered by the patient" by filing suit for related injuries. (Evid. Code, § 996 [the "patient-litigant exception"]; see also *Roberts v. Superior Court* (1973) 9 Cal.3d 330, 339; *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1011, fn. 2.)

However, a "patient-litigant" does not waive automatically all medical privacy. "Plaintiff is not compelled, as a condition to entering the courtroom, to discard entirely her mantle of

privacy.” (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 841-842.) Rather, only those issues that have been *directly put at issue* are waived. “[T]he scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court.” (*In re Lifschutz* (1970) 2 Cal.3d 415, 435.)

The filing of a personal injury lawsuit claiming damages for pain and suffering does not waive the privilege. *Roberts v. Superior Court, supra*, 9 Cal.3d at p. 339.)

Here, however, Plaintiff alleges that he underwent treatment for severe emotional distress stemming from Defendant’s alleged conduct. Further, in response to discovery, Plaintiff identified Anie Lockery at Irvine Valley Counseling as a provider of treatment as a result of his emotional distress caused by Defendant. (Jabagchourian Decl., Ex. A.)

Thus, Plaintiff has put these records at issue as part of his claim for severe emotional distress. There is no stipulated offer to limit this issue for trial.

Plaintiff argues that his claim is “a garden-variety allegation of emotional harm arising from tortious conduct”. (Opp., 6:1-2.) But he directly put mental health records at issue by claiming severe emotional distress in a claim for intentional infliction of emotional distress.

However, there is a problem with the Defendant’s request. He seeks records dating back to January 1, **2015** – more than a decade of treatment history when the alleged incident with Defendant occurred in April 2025.

		Even where the balance, because of a ‘compelling state purpose,’ weighs in favor of disclosure of private information, the scope of such disclosure will be narrowly circumscribed; such an invasion of the right of privacy ‘must be drawn with narrow specificity.’ [Citation.] . . . In balancing the respective interests, it is also the rule that ‘if state scrutiny is to be allowed, it must be by the least intrusive manner.’ (<i>Binder v. Superior Court</i>, 196 Cal.App.3d 893, 900-901, citing <i>Board of Medical Quality Assurance v. Gherardini</i> (1979) 93 Cal.App.3d 669, 680.) Thus, the subpoena as drafted is overbroad, violates Plaintiff’s privacy, and violates the psychotherapist-patient privilege. The Motion is therefore denied. Defendant is ordered to serve notice.
53	<i>Jhumra vs. Orange County Global Medical Center, Inc.</i>	<i>Continued to 9/3/26 in Dept. C23.</i>
54	<i>Khoshnevis vs. Taylor Made Cuisine, Inc.</i>	<i>No tentative ruling.</i>
55	<i>Lamrabet v. Buchanan</i>	The court denies Plaintiff Sabah Lamrabet’s motion to set aside the Judgment entered in this case on 6/28/24 and/or the 1/23/26 denial of plaintiff’s motion to set aside the judgment. The court granted Defendant’s motion for summary judgment on 6/28/24. (ROA 142). The Court entered Judgment in favor of Defendant on 6/28/24. (ROA 143).

		On 1/24/25, the Court denied Plaintiff's Motion to vacate, set aside or reconsider the court's June 28, 2024, order granting Defendant Dennis J. Buchanan, M.D.'s motion for summary judgment on the Second Amended Complaint. (ROA 172.) The Court then denied Plaintiff's Motion to vacate the judgment on 1/23/26. (ROA 186.) The Motion is procedurally improper and lacks any legal authority. (See Rules of Court, Rule 3.1112; <i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1126.) In this motion, Plaintiff asks for the court to consider her "special circumstances" in vacating the judgment or order (as it is not clear) and allowing the case to proceed. Her declaration in support of this motion, however, identifies no such circumstances. Thus, this motion is denied. Defendant is ordered to serve notice of this order.
56	<i>Mondello v. Ford Motor Company</i>	Defendant Ford Motor Company moves to compel the deposition of Plaintiff Paul Mondello. Pursuant to the parties' briefing, the deposition is scheduled to occur on 7/16/26, the day before this hearing. (Smith Decl., ¶¶ 5-9.) If the deposition does not occur as it has been noticed, the Court will grant Defendant's motion and order that the deposition occur within 30 days of this ruling.

		Irrespective of whether the deposition goes forward on 7/16/26, the Court finds that sanctions are in order. Code Civ. Proc., § 2025.450(g)(1) provides that “the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Here, Defendant has shown that it has been attempting to take Plaintiff’s deposition for over a year, noticing it on at least four separate occasions. (Pisciotta Decl., ¶¶ 3-10.) Each time Defendant noticed Plaintiff’s deposition, it requested Plaintiff’s alternative availability. It was not until after the third time the deposition was noticed that Plaintiff’s counsel provided his availability. (<i>Id.</i>) However, after the parties both agreed on a date – 2/27/26 – Plaintiff cancelled it. After Defendant filed this motion, Plaintiff then agreed to hold the deposition on 7/16/26. (Smith Decl., ¶¶ 5-9.) Accordingly, Defendant’s request for sanctions in the amount of \$560.00 against Plaintiff and/or his counsel is granted, and is to be paid within 30 days of this ruling. Defendant shall give notice.
57	<i>Neach vs. Pacheco</i>	The motion by Defendant/Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) and Defendant Pacheco & Neach, PC (“Law Firm”)

(collectively, “Defendants”) for an order granting motion for summary judgment against the Second Amended Complaint (“SAC”) as to the three causes of action alleged by Plaintiff Molly J. Magnuson is DENIED. Defendants’ alternative motion for summary adjudication is DENIED.

As an initial matter, the Court notes Defendants did not identify the issues for summary adjudication in Defendants’ notice of motion or Separate Statement. (Notice of Motion; Separate Statement.) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).)

Defendants’ notice states Defendants are alternatively seeking summary adjudication but does not clearly identify the issues. Defendants’ Separate Statement of Undisputed Material Facts in support of a motion must separately identify each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d)(1)(B).) Defendants’ separate statement does not identify any issues for summary adjudication. (See, Separate Statement.) Instead, the separate statement describes the facts as “Facts Relevant To All Claims And All Issues.” (*Id.*, 2:12.) The Court has discretion to deny a motion for summary judgment when the moving

party fails to comply with the separate statement requirement. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 415-416, citing *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

The statute governing the format of summary judgment moving papers is permissive, not mandatory. (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (*Id.*, citing *Fleet v. CBS, Inc.* (1996) 50 Cal.App.4th 1911, 1916, fn. 3.)

Magnuson did not oppose Defendants’ motion for summary adjudication on this ground. The Court exercises its discretion to consider the merits of Defendants’ motion for summary adjudication despite this procedural deficiency. Because Defendants motion for summary judgment contends all three causes of action fail as a matter of law, the Court will consider these three grounds as the issues for summary adjudication.

The Court also notes Defendants submitted a separate statement in support of Defendants' reply. The Court declines to consider Defendants' reply separate statement. (Code Civ. Proc., § 437c, subd. (b)(4).)

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Ibid.*) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) "A court identifies the issues framed by the pleadings, determines whether the moving party's showing has established facts which negate the opponent's claim and justify a judgment in the moving party's favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues." (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by

reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses

after plaintiff has had adequate opportunity for discovery]; see *Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Issue 1: Plaintiff's breach of contract claim fails because no enforceable contract exists. The alleged oral agreement lacks mutual consent, is fatally uncertain as to material terms, and constitutes an unenforceable oral contingency fee arrangement.

Defendants did not meet their initial burden to show that no enforceable contract exists. (*See*, Defendants' Separate Statement.) The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – "if it is not set forth in the separate

statement, *it does not exist.*” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superceded by statute on another ground; emphasis in original.)

“Consent is not mutual, unless the parties all agree upon the same thing in the same sense. But in certain cases defined by the Chapter on Interpretation, they are to be deemed so to agree without regard to the fact.” (Civ. Code, § 1580.)

“In order for acceptance of a proposal to result in the formation of a contract, the proposal ‘must be sufficiently definite, or must call for such definite terms in the acceptance, that the performance promised is reasonably certain.’ (1 Witkin, Summary of Cal. Law (9th ed., 1987) Contracts, § 145, p. 169.) A proposal ‘cannot be accepted so as to form a contract unless the terms of the contract are reasonably certain. [¶] The terms of a contract are reasonably certain if they provide a basis for determining...the existence of a breach and for giving an appropriate remedy.’ (*Ibid.*, quoting from Rest.2d Contracts, § 33.)” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.)

Defendants’ contend Pacheco made the alleged offer to Magnuson. (Defendants’ Material Fact [“DMF”] No. 5.) Defendants’ separate statement is silent as to what was *not* mutually consented to by the parties. The proposal, as described, was sufficient to determine the parties’ obligations.

Even if Defendants met their initial burden, which they did not, Magnuson raised a triable

issue as to whether compensation would be conditioned on future employment. (DMF No. 5; Magnuson Decl., ¶ 9, 11, 14, 16, and 17, Exhibits B, C, and D; Neach Decl., ¶ 7, Exhibit D.)

Defendants also contend Magnuson's alleged oral contract did not comply with Rules of Professional Conduct Rule 1.5.1, which provides as follows:

(a) Lawyers who are not in the same law firm shall not divide a fee for legal services unless:

- (1) the lawyers enter into a written agreement to divide the fee;
- (2) the client has consented in writing, either at the time the lawyers enter into the agreement to divide the fee or as soon thereafter as reasonably practicable, after a full written disclosure to the client of: (i) the fact that a division of fees will be made; (ii) the identity of the lawyers or law firms that are parties to the division; and (iii) the terms of the division; and
- (3) the total fee charged by all lawyers is not increased solely by reason of the agreement to divide fees.

Defendants did not show the alleged arrangement was a fee division. (DMF No. 5.) Magnuson was not getting a percentage of the amount the Law Firm would receive from the client. Magnuson alleges she was to receive \$200 per hour for her services. Even if Defendants showed the oral agreement was illegal, Plaintiff raised a triable issue as to Defendants' purported material fact that payment was contingent upon Magnuson's continued employment. (DMF No. 5; Magnuson

Decl., ¶ 9, 11, 14, 16, and 17, Exhibits B, C, and D; Neach Decl., ¶ 7, Exhibit D.)

Accordingly, the motion for summary adjudication is denied as to this issue.

Issue 2: Plaintiff’s breach of fiduciary duty claim fails because no fiduciary relationship exists. Plaintiff was not employed by the Firm at the time of the alleged wrongdoing, and she identifies no other legally cognizable relationship that could give rise to fiduciary duties. Her attempt to create such duties based on an asserted entitlement to funds or through constructive trust principles is legally insufficient and has been rejected by California courts.

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432.)

“[B]efore a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law.” (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 632.) A “mere contract or a debt does not constitute a trust or create a fiduciary relationship.” (*Id.*, at 634.)

A fiduciary relationship is “any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other

party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent.” (*Wolf v. Superior Court* (2003) 106 Cal.App.4th 625, 29.) Examples of fiduciary relationships include: principal and agent; real estate broker/agent and client; stockbroker and customer; attorney and client; partners; joint venturers; corporate officers and directors, on the one hand, and the corporation and its shareholders, on the other hand; husband and wife, with respect to the couple's community property; controlling shareholders and minority shareholders; trustee and trust beneficiary; guardian and ward; pension fund trustee and pensioner beneficiary; executor and decedent's estate; and trustee and trust beneficiaries. (*Oakland Raiders*, 131 Cal.App.4th at 632-633.)

The second amended complaint alleges the fiduciary relationship between Plaintiffs and Defendants was based on a constructive trust, more specifically that Defendants obtained the funds from the arbitration award, which included funds Plaintiffs were entitled to receive from Defendants. (SAC, ¶¶ 82 and 83.) “When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party. Thus, the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust.” (*Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156.)

Defendants showed there was no agreement to pay Magnuson after she departed from the Law Firm. (DMF No. 4, 5, 9, and 10.) Defendants showed the employment or independent contractor relationship between Defendants and Magnuson was terminated. (DMF No. 3, 4, 5, and 7.) Magnuson met her shifted burden to raise a triable issue as to whether the agreement for payment was conditioned on continued employment with the Law Firm. (DMF No. 5; Magnuson Decl., ¶ 9, 11, 14, 16, and 17, Exhibits B, C, and D; Neach Decl., ¶ 7, Exhibit D.) Magnuson also shows a triable issue as to whether payment under the written Of Counsel agreement; however, the Court need not reference that because one triable issue is sufficient to overcome a motion for summary judgment/adjudication. (Plaintiffs' Compendium of Exhibits, Exhibit A.)

Accordingly, the motion is denied as to this issue.

Issue 3: Plaintiff's quantum meruit claim fails because the parties' relationship was governed by an express written agreement that entitles her to compensation based on her continued employment. Where an express agreement governs the subject matter, the equitable remedy of quantum merit is unavailable as a matter of law.

"To recover on a claim for the reasonable value of services under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for services from the defendant and that the services rendered were intended to and did

benefit the defendant.” (*Ochs v. PacifiCare of California* (2004) 115 Cal.App.4th 782, 794.)

The third cause of action alleges Magnuson was not paid for her services in the Employment Action, which was the subject of the alleged oral agreement, and the Qui Tam Action and Malpractice Action, which would be covered under the written Of Counsel agreement. (SAC, ¶¶ 89-90.) Magnuson alleges this cause of action “in the alternative to her claim for breach of contract.” (*Id.*, ¶ 89.) Magnuson’s breach of contract is based solely on the alleged oral agreement. (*Id.*, ¶¶ 75-80.) Defendants have not shown they are entitled to summary adjudication on this cause of action because the third cause of action is not solely based on an express written agreement. Accordingly, the motion is denied. (Code Civ. Proc., § 437c, subd. (f)(1) [“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action.”].)

In addition, even if Defendants met their initial burden, which they did not, Manguson raised a triable issue as to whether payment under the oral agreement was conditioned on continued employment with the Law Firm. (DMF No. 5; Magnuson Decl., ¶ 9, 11, 14, 16, and 17, Exhibits B, C, and D; Neach Decl., ¶ 7, Exhibit D.)

Accordingly, the motion for summary adjudication is denied as to this issue.

For the reasons set forth above, Defendants’ motion for summary judgment is denied.

Plaintiffs shall give notice.

58	<i>North Mill Equipment Finance, LLC v. Executive Concierge and Transportation, LLC</i>	Plaintiff North Mill Equipment Finance, LLC's unopposed applications for a writ of possession are granted. A writ of possession "shall" issue if (1) the plaintiff has established the probable validity of its claim to possession of tangible property and (2) the plaintiff has provided an undertaking of not less than twice the value of defendant's interest, if any, in the property. (Code Civ. Proc. §§ 512.060, 515.010.) In addition, if the property is held at a private place, plaintiff must also establish probable cause to believe that the property is in fact located at the private place. (Code Civ. Proc., §512.010(b)(4).) A writ of possession must include "a particular description of the property and a statement of its value." (Code Civ. Proc., §512.010(b)(3).) Plaintiff has established the probable validity of its claim. Plaintiff submits evidence that Defendants are in default and based on the Commercial Lease Agreement, Guarantee and Certificate of Title, Plaintiff is entitled to take possession of the vehicle. (Miller Decl., ¶¶ 7-16.) There is also probable cause supporting that the vehicle is located at one of the two residences noted in the application, given that the Peralta Dr. address is the address of the Lessee on the Lease Agreement and Defendants were served with process at the Del Lago address. (Miller Decl., ¶ 18, Ex. 1, ROA 24, 26, 28.) Finally, Plaintiff's applications particularly describe the property listing the make, model and Vin number of the vehicle. (Miller Decl., ¶ 23.)
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		Plaintiff shall give notice.
59	<i>Rager vs. Tangerini</i>	Respondent Nathaniel Tangerini's Motion to Compel Arbitration is GRANTED under CCP §1281.2. Respondent has met his burden of alleging the existence of a written agreement to arbitrate. This action is stayed pending arbitration under CCP §1281.4. Petitioner did not meet his burden proving that respondent waived his right to arbitrate [CCP §1281.2(a)], that grounds exist for rescission of the agreement [CCP §1281.2 (b)], or that there are third-party actions arising out of the same transactions or series of transactions as this action and a possibility of conflicting rulings on a common issue of law or fact. [CCP §1281. 2(c)] Without proof of any of these grounds, the Court "shall" send this matter to arbitration. The issues to be decided on a Motion to Compel Arbitration are narrow: is there an agreement to arbitrate and are there defenses to the enforcement of that agreement. As such, any other issue is not properly before the Court. Therefore, the Court does not consider requests to appoint a referee under CCP §639 or a motion for attorney's fees based upon the Arbitration Agreement. As to the latter, with the granting of this Motion, an award of attorneys' fees is within the jurisdiction of the arbitrator, and this Court may not act upon it. Moving party shall give notice.
60	<i>Shah vs. Gordon</i>	The unopposed motion by Defendant Kimberly Gurden, erroneously sued as Kimberly Gordon ("Defendant") for an order compelling Plaintiff

Minal Shah (“Plaintiff”) to serve initial and verified responses to Special Interrogatories, Set One is GRANTED.

A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Plaintiff waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).)

All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (*See Leach v. Superior Court (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

Defendant showed Defendant served the special interrogatories at issue by mail on Plaintiff on January 28, 2026, that Plaintiff did not request any extension, and Plaintiff has not served any responses. (Macdonald Decl., ¶¶ 3-5 and 10, Exhibit A.) Although not required, Defendant attempted to informally resolve the discovery issue, but Plaintiff did not respond. (*Id.*, ¶ 6, Exhibit B.)

Accordingly, Defendant’s unopposed motion is granted. Plaintiff shall serve verified Code-compliant responses without objection by August 21, 2026.

		The Court notes the notice and moving papers, as well as the discovery at issue, were served by mail and email on Plaintiff. Pursuant to CRC Rule 2.251(c)(3)(B), Plaintiff is self-represented and is “to be served by non-electronic methods unless [Plaintiff] affirmatively consent[s] to electronic service.” There is no showing Plaintiff affirmatively consented to electronic service. The Court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff is a self-represented litigant does not relieve him of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Defendant shall give notice.
61	<i>Viveros v. Aaron Transport, Inc.</i>	Defendant Aaron Stogden Garcia dba Aaron’s Transport’s unopposed motion to compel the

inspection of Plaintiff Oswaldo Viveros' vehicle is GRANTED.

Code Civ. Proc., § 2031.010(a) provides that "[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." (Emphasis added.)

Code Civ. Proc., § 2031.310 states in relevant part that a party may move to compel a further response to its inspection demand if "[a]n objection in the response is without merit or too general." The motion "shall "set forth specific facts showing good cause justifying the discovery," and shall be "accompanied by a meet and confer declaration." (*Id.*)

Defendant seeks to compel inspection of Plaintiff's vehicle. Plaintiff served objections to Defendant's 1/12/26 Demand. The parties met and conferred without success. (Sullivan Decl., ¶¶ 3-6.)

The Court finds that Defendant has shown good cause to compel the inspection including obtaining information from the vehicle's electronic data recorder.

There is no opposition.

Thus, the motion is GRANTED.

Defendant requests sanctions in the amount of \$2,460.00, but does not provide the Court with any facts supporting this amount pursuant to

		Code Civ. Proc., § 2023.040. Therefore, Defendant’s request for sanctions is DENIED. Defendant shall give notice.
62	<i>Yahayakshani vs. Roseman Law, APC</i>	Defendant Roseman Law, APC’s (“Defendant”) Demurrer to Plaintiffs Saied Yahakshani and Vered Corsandi’s (“Plaintiffs”) Complaint is sustained with leave to amend. <u>Procedural Issues</u> Defendant’s request for judicial notice (ROA 28) is granted. (Evid. Code, § 452, subd. (d).) However, judicial notice of court records is limited to “the existence of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments[.]” (<i>Williams v. Wraxall</i> (1995) 33 Cal.App.4th 120, 130, fn. 7.) <u>Merits</u> Defendant generally demurs to Plaintiffs’ complaint for professional negligence on, among other grounds, that the claim is barred by the statute of limitations. Defendant contends that Plaintiffs “were on inquiry notice of the pending dismissal [of the underlying LASC case] as early as April 2023.” (Dem. at p. 3.) CCP section 340.6 provides: “An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the

date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).)

It is not appropriate to sustain a demurrer based on the statute of limitations unless the defects “clearly and affirmatively appear on the face of the complaint.” (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

Traditionally, a claim accrues when it is “complete with all of its elements,” “those elements being wrongdoing [or breach], harm, and causation.” (*Stella* supra, 8 Cal.App.5th at p. 191, citations omitted.) But, one exception is the “delayed discovery rule,” which “postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Id.* at pp. 191-192, citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) Under the rule, “the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Id.* at p. 192, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) “In order to rely on the discovery rule for delayed accrual of a cause of action, “[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Here, the Complaint shows *on its face* that, unless the discovery rule applies, Plaintiffs’ professional negligence claim is time-barred. “In order to establish a cause of action for legal

	malpractice the plaintiff must demonstrate: (1) breach of the attorney’s duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a proximate causal connection between the negligent conduct and the resulting injury; and (3) actual loss or damage resulting from the negligence.” (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 699.) Per the judicially-noticeable documents, Defendants obtained entry of default in the LASC Case on or about 5/18/22, against Massfran Inc. and Rocky Peak Sheet Metal, Inc. (ROA 28[RJN, Exhs. 7, 8].) On or about 2/17/23, Defendants filed a “proof of service order granting attorney’s motion to be relieved as counsel for [Plaintiffs].” (RJN, Exh. 12.) On 6/30/23, following an OSC, the complaint in the LASC case was dismissed without prejudice. (RJN, Exh. 17.) The Order of Dismissal was entered on 7/3/23. (RJN, Exh. 18.) Plaintiffs allege Defendants breached the duty of care by failing to pursue default judgments against the defaulted defendants in the underlying action, and that the LASC case was ultimately dismissed without prejudice. As such, their malpractice claim arguably accrued when the LASC case was dismissed by Order of Dismissal on 7/3/23, at which time Plaintiffs could no longer pursue a default judgment against the default defendants. That means, the statute of limitations expired on or about 7/3/24 (i.e., within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission). However, Plaintiffs did not file this action until
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10/15/25, making it more than one year too late.

Plaintiffs contend the Complaint, on its face, does not show the action is time-barred, because they allege that they “first learned” about the dismissal of the LASC Case on or about 10/29/24. (Compl. at ¶¶ 14, 19.) However, as Defendants correctly point out, in order to invoke the delayed discovery rule, Plaintiffs’ complaint “must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808, emphasis in original.) “The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury [fn] if they have “ ‘ “information of circumstances to put [them] *on inquiry* ” ’ ” or if they have “ ‘ “*the opportunity to obtain knowledge* from sources open to [their] investigation.” (*Id.* at pp. 807–808, fn omitted.)

Plaintiffs, here, fail to plead any facts in their complaint showing that they could not have discovered the entry of the Order of Dismissal, which was entered on 7/3/23, prior to 10/29/24 (the date of their alleged “discovery), despite reasonable diligence. As such, the demurrer shall be sustained with leave to amend.

Plaintiffs shall file their amended pleading within 15 days of the notice of ruling.

Defendant shall give notice of the ruling.

63	<i>U.S. Bank National Association vs. Best Time Logistics Inc</i>	The Court grants Law Office of Mandeep S. Rupal and Mandeep Rupal's Motion to be relieved as Counsel for Defendant Best Time Logistics Inc. Counsel has used the required forms, all required information is supplied, and service now is proper. (California Rules of Court, rule 3.1362; see ROA 107, 114.) Mr. Rupal Esq. is ordered to submit a new proposed order with all boxes filled out with updated future hearing date(s), for the Court's signature. Mr. Rupal Esq. shall serve the signed Order on all Counsel who have appeared and Best Time Logistics Inc., and then file a proof of service showing the same. Law Office of Mandeep S. Rupal and Mandeep Rupal will be relieved as counsel upon filing the proof of service showing that a copy of the signed order was properly served. Mr. Rupal Esq. shall serve notice of this Order.
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